

23STCV20997 23STCV20997

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-09-04

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Case Number: 23STCV20997 Hearing Date: September 4, 2026 Dept: 408

Defendant Genevieve Angel Dial's Motion for

Judgment on the Pleadings is GRANTED.

I.

BACKGROUND

On August 31, 2023, Plaintiff Geraldine Angel ("Plaintiff") filed a complaint against Defendant Genevieve Angel Dial ("Defendant") alleging causes of action for:

1.

Malicious

Prosecution;

2.

Abuse

of Process;

3.

Harassment;

4.

Slander;

5.

Intentional

Infliction of Emotional Distress;

6.

Negligence
per se; and

7.

Negligence.

On

November 27, 2023, pursuant to Plaintiff's request, default was entered against Defendant.

On

December 21, 2023, Defendant filed an answer to Plaintiff's complaint.

On

December 22, 2023, the court found cases 23STCV20996, 23STCV20997, 23STCV20999, and 23STCV21000 related, designating 23STCV20996 as the lead case. All three other cases have since been dismissed.

On

January 29, 2024, pursuant to Plaintiff's request, Does 1 through 50 were dismissed from the complaint with prejudice.

On May

1, 2024, the court denied Plaintiff's Request for Default Judgment without prejudice.

On

October 17, 2024, the court denied Defendant's Motion to Set Aside/Vacate Default.

On

December 18, 2024, the court denied Plaintiff's Application for Default Judgment.

On February 24, 2025, the court granted

Plaintiff's Request to Vacate Default entered on November 27, 2023, against Defendant.

On

June 10, 2025, Defendant filed an answer to Plaintiff's complaint.

On

June 4, 2026, the court overruled Defendant's Demurrer and Special Motion to Strike.

On

June 9, 2026, Defendant filed this Motion for Judgment on the Pleadings. On July 24, 2026, Plaintiff filed an opposition. On July 28, 2026, Defendant filed a reply.

On

August 6, 2026, the court denied Defendant's Motion for Protective Order and Motion to Quash Service of Summons.

II.

LEGAL STANDARD

"A party may move for judgment on the pleadings." (Code Civ. Proc., § 438, subd. (b)(1).) "The motion provided for in this section may only be made on one of the following grounds: ... (A) If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (B) If the moving party is a defendant, that either of the following conditions exist: (i) The court has no jurisdiction of the subject of the cause of action alleged in the complaint. (ii) The complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438, subd. (c)(1)(A)-(B).)

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 [citations omitted].) "In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged." (Fire Ins. Exch. v. Super. Ct. (2004) 116 Cal.App.4th 446, 452.)

III.

DISCUSSION

Defendant seeks

judgment on the pleadings on the seven causes of action alleged in Plaintiff's complaint. (Motion, at pp. 5-6.) Defendant argues that Plaintiff's claims are time barred by the applicable statute of limitations. (Motion, at pp. 10-12.) Defendant further argues that Plaintiff failed to allege any facts to toll the applicable statute of limitations. (Id., at p. 13.) The court agrees.

The

statute of limitations for malicious prosecution and abuse of process is two years. (Meiri v. Shamtoubi (2022) 81 Cal.App.5th 606, 617-618; Code Civ.

Proc., § 335.1; Cantu v. Resolution Trust Corp. (1992) 4

Cal.App.4th 857, 886-887.) The statute of limitations for slander is one year. (Code

Civ. Proc., § 340, subd. (c).) The statute of limitations for harassment, intentional infliction of emotional distress, negligence, and negligence per se is two years. (Code Civ. Proc., § 335.1.)

The crux of Plaintiff's complaint arises from Defendant filing a domestic violence restraining order ("DVRO") petition against Plaintiff on June 2, 2021, allegedly based on knowingly false statements. (Complaint, ¶ 45.) The complaint alleges that the DVRO petition hearing took place on August 26, 2021, where the court subsequently denied Defendant's request. (Id., ¶¶ 50, 54.) Plaintiff filed her complaint on August 31, 2023, over two years from the filing and denial of Defendant's DVRO petition and outside the applicable statute of limitations for each of Plaintiff's causes of action.

In opposition, Plaintiff argues that the

complaint was timely filed as Defendant's alleged conduct was not a series of isolated events but a pattern of repeated conduct where the limitation periods does not begin to run until the last injurious act occurs. (Opp., at pp. 9-10.)

The complaint provides a single allegation of Defendant's purported wrongful conduct past the August 31, 2023, denial of Defendant's DVRO petition asserting that, on March 9, 2023, Defendant texted Plaintiff as follows: "Hahaha Loser! You're ugly, your attitude is worse than your appearance. Your

witchcraft — will all come back to you! Loser!!! You're very rude! Karma will education or never finished. It's your fault! Not my father, until you are not recognized as his child. You are not Papa's child. You wish!!!! Hahahaha!!!! You will die of jealousy and greed! And nobody will feel bad for you and will even be there....so sad..." (Complaint, ¶ 58.) The court does not find that such allegation tolls the applicable statute of limitation as the purported conduct fails to support any of the causes of action asserted. In other words, the mere fact that Defendant texted Plaintiff on March 9, 2023, does not accrue a claim for malicious prosecution, abuse of process, harassment, slander, intentional infliction of emotional distress, negligence, or negligence per se and cannot constitute a last tortious act to trigger the statute of limitations to begin to run. Accordingly, Plaintiff's causes of action are time-barred.

IV.

CONCLUSION

Defendant Genevieve Angel Dial's Motion for Judgment on the Pleadings is GRANTED.